Study sheet

Eklavya's Morning Brief · Saturday, 14 November 2026 · AI-assisted notes: verify before citing

Topics covered today

BNSS / CrPC (8) · Constitution (7) · BNS / IPC (6) · CPC (5) · Contract / Specific Relief (3) · Hindu / Muslim law (2) · Transfer of Property (1) · BSA / Evidence (1)

Recall quiz

1. In LRs v. Commissioner of Endowments, why was adverse possession not allowed against the deity's property?

2. What did the Gauhati High Court say about reviving an expired provisional consent in NOC Foundation v. State of Assam?

3. According to Bigan Shah v. State of Bihar, can a Permanent Lok Adalat record a compromise in a land dispute?

4. What factor did the Madras High Court consider in ordering a probe into the retained surgical needle case?

5. In the Gujarat High Court's ruling on cattle transportation, what was the court's view on assuming the animals were for slaughter?

Answers

1. Because the deity is a perpetual minor, and the court held that a minor cannot be dispossessed by adverse possession.
2. It held that an expired provisional consent cannot be revived after six years; a fresh application cannot be treated as an extension.
3. No, the court held that a Permanent Lok Adalat has no jurisdiction to record such compromises.
4. The court noted the woman's low economic status prevented earlier medical treatment, highlighting negligence in surgery.
5. The court stated that cruel transportation alone does not presume the cattle were being taken for slaughter.

Maxim of the day

Ex turpi causa non oritur actio: No action arises from an immoral or illegal cause.

Article of the day

Article 300A: No person to be deprived of property except by authority of law.

Old and new criminal codes

IPC 120B, criminal conspiracy is now **BNS 61(2)**. Verify against the BPR&D comparison tables.

Case notes for your syllabus

Learning and unlearning - Supreme Court Observer BNS / IPC · Hindu / Muslim law · Constitution

Facts: A Calcutta High Court judge dismissed a wife's maintenance claim on the basis that drinking and smoking were "not part of our culture," and an Allahabad High Court held that a minor girl's breast-grabbing was merely "preparation" to rape, not an "attempt."

Issue: Whether judicial language that reflects gender stereotypes should be curtailed and guided by sensitivity and constitutional dignity.

Held: The Supreme Court intervened, observing that efforts to sensitize judges had "not borne the fruit that was expected" and directed the National Judicial Academy to recommend changes, emphasizing compassionate,

gender-sensitive writing.
Principle: Judgments must be free of stereotypical, pejorative language and should reflect compassion, humanity, and respect for bodily autonomy and constitutional dignity; judges should limit descriptions to facts necessary for decision-making.
Provisions: Not stated (the source references the 2023 Handbook on Combating Gender Stereotypes, the 2023 Supreme Court judgment in *Joseph Shine v. Union of India*, *Bharwada Bhoginbhai Hirjibhai v. State of Gujarat* (1983), *Lillu @ Rajesh v. State of Haryana* (2013), and *Aparna Bhat v. State of Madhya Pradesh* (2021) but gives no specific statutory sections).
Exam angle: Criminal Procedure Code / IPC – gender-sensitisation of judicial officers; could be asked as an issue-framing question on how the Supreme Court's directives on language affect the interpretation of offences like rape and dowry death.

Tejpal returns to the Supreme Court - Supreme Court Observer BNS / IPC · BNSS / CrPC
Facts: Tarun Tejpal, former editor-in-chief of *Tehelka*, was arrested in November 2013 for alleged rape of a 27-year-old employee; after a trial, acquittal (May 2021) and later conviction by the Bombay High Court, he appealed to the Supreme Court, which dismissed his interim-bail plea and agreed to hear the appeal.
Issue: Whether the conviction (and sentencing) of Tejpal can stand in view of the evidentiary standards for complainant testimony, the admissibility of extensive digital data from the complainant's phone, and the applicability of the amended 2013 rape law.
Held: The Supreme Court dismissed Tejpal's interim-bail application, granted leave to the State of Goa to seek enhancement of the sentence, and issued notice to hear the appeal against the High Court's conviction.
Principle: A conviction for rape may rest on "unshaken" testimony of the prosecutrix, provided the court follows the standards articulated in *Aparna Bhat v State of Madhya Pradesh* that exclude consideration of the survivor's sexual history; digital evidence must be relevant to the incident and its surrounding circumstances, and its extraction must respect the right to privacy under Article 21.
Provisions: - Article 21, Constitution of India (right to a fair trial). - Section 376, IPC (punishment for rape). - *Aparna Bhat v State of Madhya Pradesh* (Supreme Court precedent on survivor testimony). - No other statutes or sections are expressly cited in the source.
Exam angle: Questions may test the **Criminal Law – IPC** (Section 376) and **Constitutional Law** (Article 21) by asking: (i) how the Supreme Court's standards for survivor testimony and exclusion of sexual-history evidence affect the conviction; (ii) the limits on admissibility of digital evidence in rape trials; or (iii) the sentencing discretion under Section 376 in light of mitigating/aggravating factors.

LRs v. Commissioner of Endowments CPC · Contract / Specific Relief · Transfer of Property · Limitation / Registration · Constitution
Facts: The suit land belongs to the deity Maa Sureswari Devi; the plaintiff's father possessed it for over fifty years and the plaintiff continued possession, seeking settlement which was refused, and then filed suit for adverse possession.
Issue: Whether a deity, deemed a perpetual minor, is exempt from the operation of limitation periods and thus from an adverse-possession claim over its property.
Held: The Orissa High Court held that a deity is not exempt from limitation; however, the appellant's claim failed because his long possession was permissive, not hostile, and therefore did not satisfy the requirements for adverse possession.
Principle: A deity's status as a perpetual minor does not create an exemption from the law of limitation; adverse possession can be invoked against deity-owned property only if the possession is hostile and continuous, not merely permissive or under lease.
Provisions: not stated.
Exam angle: Limitation Act (periods of limitation) and the doctrine of adverse possession – could be asked on whether the minority of a deity bars limitation or on the ingredients of hostile, continuous possession for adverse

possession.

LiveLaw Bharatiya Nagarik Suraksha Sanhita (BNSS) And Bharatiya Nyaya Sanhita (BNS) Monthly Digest: October 2026 BNS / IPC · BNSS / CrPC · Constitution

Facts: Petitioners challenged the constitutional validity of Section 163 BNSS, which authorises executive magistrates to issue prohibitory orders, and also sought relief against Section 172 BNSS, which permits police to detain persons who resist or disregard police directions, arising from the Delhi protests.
Issue: Whether the Supreme Court will examine the constitutional validity of Section 163 BNSS and the challenge to Section 172 BNSS.
Held: The Court declined to examine the validity of Section 163 BNSS, relying on its earlier upholding of the analogous Section 144 CrPC in *Babulal Parate v. State of Maharashtra* (1961). The Court issued a notice on the challenge to Section 172 BNSS and directed the Union Government to file a reply within two weeks.
Principle: The validity of a provision analogous to an earlier upheld provision (Section 144 CrPC) need not be re-examined, but a fresh challenge to a distinct provision (Section 172 BNSS) must be entertained, with the Union required to respond.
Provisions: Section 163 BNSS; Section 172 BNSS; *Babulal Parate v. State of Maharashtra* (1961) 3 SCR 423.

“Review petition cannot become an appeal in disguise”; Delhi HC reiterates scope of review under Order 47 Rule 1 CPC CPC · Constitution

Facts: A review petition was filed in the Delhi High Court challenging a suspension order and seeking enhancement of subsistence allowance, which had not been specifically pleaded in the original writ petition.
Issue: Whether a review under Order 47 Rule 1 CPC can be used to reassess the merits of the case or to serve as an appeal in disguise.
Held: The Division Bench dismissed the review petition, holding that no error apparent on the face of the record existed and that the review could not be employed to re-examine the merits or act as an appeal.
Principle: Review under Order 47 Rule 1 CPC is confined to correcting errors apparent on the face of the record or considering newly discovered, important evidence; it cannot be used to re-try the case or to convert a review into an appeal.
Provisions: Order 47 Rule 1, Civil Procedure Code, 1908; no other statutes, articles or cases cited.
Exam angle: CPC – Order 47 Rule 1 review; could be asked to frame the scope of review (error apparent on record / new evidence) versus an appeal, focusing on the limited ingredients for a valid review.

Unauthorised use of Amitabh Bachchan’s name and photographs infringes publicity rights: Inside Delhi HC ruling CPC

Facts: Amitabh Bachchan sued several defendants for unauthorised commercial use of his name, image, voice and likeness in apps, messages, books, T-shirts, posters and domain names.
Issue: Whether the defendants’ unauthorised exploitation of the plaintiff’s persona infringes his right of publicity.
Held: The Court found infringement of publicity rights and decreed the suit, granting permanent injunctions against all defendants, including the John Does.
Principle: Infringement of the right of publicity occurs when (i) the plaintiff has a valid, enforceable right in his identity and (ii) the defendant’s unauthorised use makes the celebrity identifiable, thereby exploiting the identity for commercial gain without consent.
Provisions: Order 23 Rule 3 CPC; Order 8 Rule 10 CPC; Rule 27 Delhi High Court Intellectual Property Rights Division Rules, 2022; cited *Titan Industries Ltd. v. Ramkumar Jewellers*.
Exam angle: Right-to-publicity under the CPC (Order 23 Rule 3 & Order 8 Rule 10) and IP law; could be asked as “What are the ingredients for establishing infringement of publicity rights and which procedural provisions empower the court to grant injunctions?”

NOC Foundation v. State of Assam & Others CPC

Facts: The Pollution Control Board, Assam extended a provisional consent (PCTE) granted in Dec 2012 for a calcined petroleum coke unit, even though the consent had expired on 9 Oct 2013; the company applied for fresh consent in 2019 and 2021, which the Board treated as an extension.
Issue: Whether a Pollution Control Board can revive or extend a provisional environmental consent that expired six years earlier without any statutory authority.
Held: The Gauhati High Court quashed the Board's order dated 31 Dec 2022 extending the expired consent, holding that the Board acted beyond its power.
Principle: An expired provisional consent cannot be revived or extended after a long lapse unless a specific statutory provision authorises such extension; absent such provision, the extension is "bad in law and not sustainable."
Provisions: not stated.
Exam angle: Environmental law – applicability of the Water (Prevention and Control of Pollution) Act/Air Act provisions on consent validity; could be asked on the requirement of statutory authority for extending environmental consents and the limits of PCB powers.

Bigan Shah v. State of Bihar through the District Collector CPC · Constitution
Facts: A land partition dispute led the parties to a compromise, and the Permanent Lok Adalat (PLA) in Sasaram passed an award on 7 July 2011, which the petitioner later sought to modify for a typographical omission.
Issue: Whether a Permanent Lok Adalat has jurisdiction to record a compromise in a land dispute under the Legal Services Authorities Act, 1987.
Held: The award is void ab initio; the PLA had no jurisdiction to record a compromise in a land dispute and the award is set aside.
Principle: A Permanent Lok Adalat can adjudicate only disputes concerning public utility services; it cannot record compromises in matters outside that domain, such as land disputes.
Provisions: Sections 22-A and 22-B(1) of the Legal Services Authorities Act, 1987; no other statutes or cases cited.
Exam angle: Test the scope of Sections 22-A/22-B of the Legal Services Authorities Act – whether a PLA can entertain land-related compromises; focus on statutory jurisdiction versus subject-matter limitation.

Surgical Needle Found In Woman's Abdomen 12 Years After Surgery: Madras High Court Orders Probe BNSS / CrPC
Facts: A woman underwent LSCS with tubectomy in 2010; 12 years later an X-ray revealed a 5 cm surgical needle left in her abdomen, causing pain, weight loss and requiring another operation.
Issue: Whether the delay of 12 years in approaching the court bars an enquiry into alleged medical negligence.
Held: The Madras High Court refused to accept the belated-approach argument and directed the Tamil Nadu Medical Council to conduct an enquiry and pass appropriate orders.
Principle: Delay in filing a petition does not preclude investigation of alleged medical negligence where the plaintiff's socioeconomic conditions explain the delay and the injury is evident.
Provisions: not stated.

Moinuddin Khan v. Narayan Reddy IAS BNSS / CrPC · Contract / Specific Relief
Facts: The petitioner alleges that the HYDRAA Commissioner and the Tahsildar forcibly dispossessed his property in violation of a 2024 court order and dismantled structures without prior notice. Both officers were served Form-I notices to appear personally and answer charges of wilful disobedience.
Issue: Whether the personal appearance of public officers can be exempted on the ground of official duties in a contempt of court proceeding.
Held: The Telangana High Court refused to dispense with personal appearance of the HYDRAA Commissioner and the Tahsildar, directing the DGP and the Hyderabad City Police Commissioner to ensure their presence on the next hearing date.

Principle: Officers holding public office must comply with specific directions of the Court and cannot rely on official engagements or pending administrative work as a ground to avoid personal appearance in contempt proceedings.
Provisions: not stated.

Legal terms, English and Hindi

review
writ
limitation
ex parte
compensation

Flashcards from today

LRs v. Commissioner of Endowments CPC · Contract / Specific Relief · Transfer of Property

NOC Foundation v. State of Assam & Others CPC

Bigan Shah v. State of Bihar through the District Collector CPC · Constitution

Moinuddin Khan v. Narayan Reddy IAS BNSS / CrPC · Contract / Specific Relief

Vinod Vikraman Pillai v. State of Kerala and Ors Constitution

Longstanding Practice Of Organising Chhath Puja Can't Justify Use Of Public Green Area: Delhi High Court Hindu / Muslim law

Longstanding practice of organising Chhath Puja at a particular location cannot, by itself…

Tasleem Khan v. State of Jharkhand BNS / IPC · BNSS / CrPC

J&K&L High Court Directs Police To Supply Material Behind 'Militant' Remark Against Complainant In Police Report BNSS / CrPC

The petitioner must first be supplied the relevant material so that he could examine it and thereafter avail an appropriate remedy under law